

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 25-24

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Southern International Co., LTD

Complainant,

v.

Daynamez Group of Companies LLC

Respondent.

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**RESPONDENT'S MOTION TO DISMISS  
THE SECOND AMENDED COMPLAINT**

Comes Now the Respondent, Daynamez Group of Companies LLC (hereinafter referred to as Daynamez) and responds to the Amended Complaint by Southern International Co., Ltd (hereinafter referred to as SIC) by filing its Motion to Dismiss the Formal Amended Complaint and would state the following:

**Introduction**

1. A Complaint was served with the Federal Maritime Commission on August 26, 2025.
2. The Complaint that was originally filed was found to be deficient as it did not follow a cohesive format with specific allegations in numbered paragraphs and did not state a claim whereby there was jurisdiction by the Federal Maritime Commission as well as a deficient verification. Although

SIC was allowed to Amend its Complaint twice there are still inadequate allegations to show that there is jurisdiction over this case under the Shipping Act. The Court had stated that the original allegations in addition to not being filed in the proper format did not find the allegations sufficient on the merits but gave the Complainant an opportunity to Amend its Complaint again.

3. The Second Amended Complaint realleges that the Respondent is an NVOCC with insufficient facts that prove that it is an NVOCC. Interestingly enough the Complaint alleges at Paragraph 9 that SIC is an NVOCC and mentions at least 2 other NVOCCs that were involved with these shipments.
4. This Court has ruled strongly against the Complainant in the past on the issue of whether or not the Respondent was acting as an NVOCC and there are no new allegations that should change the prior conclusions of the Court.
5. There are unsubstantiated allegations regarding the freight which goes to a contractual dispute between two agents over payments. It is actually the Respondent that is owed money.

#### **Failure to State a Cause of Action**

6. It is pointed out that this is yet another Complaint that does not follow the Federal Rules of Civil Procedure as followed by the Federal Maritime Commission. Several of the paragraphs are lengthy with several sentences in a numbered paragraph with numerous emails.

Federal Rule of Civil Procedure 8(a)(2) requires a "found to be an issue in short

and plain statement of the claim showing that the pleader is entitled to relief.

Rule 8(d)(1): Mandates that allegations must be “simple, concise, and direct.”

Rule 12(b)(6): Provides for dismissal of a complaint for “failure to state a claim upon which relief. ”Rule 12(e): Allows a motion for a more definite statement if a pleading is “so vague or ambiguous that the party cannot reasonably.

prepare a response.” The allegations are not simple as many have several sentences and make it difficult to frame a Response. It is impossible to respond in a concise format as the allegations are not concise. Paragraphs 21 and 25 are examples of this. The Respondent is expected to respond to multiple allegations and multiple emails within a single numbered paragraph in multiple instances.

**The Respondent is not an NVOCC.**

7. The Second Amended Complaint still does not allege sufficient facts that the Respondent is an NVOCC or any type of carrier. The Complainant is even going so far as to allege that the Respondent is an actual carrier which is unrealistic.
8. SIC has still not alleged any new facts that would be sufficient to confer jurisdiction by the Federal Maritime Commission on the basis of the Respondent being a carrier.
9. The Respondent is not and has never been a licensed NVOCC. On the other hand, the Complainant states that it is an OTI with a registration number and is licensed with the Federal Maritime Commission. See Paragraph 9 of the Second Amended Complaint. The Complainant is based in Vietnam and

the shipments in this case have been inbound from Vietnam into the United States. Furthermore, the third Complaint lists other entities involved in the transactions including Super Cargo Service, and Kargosmart Vietnam that operate out of Vietnam. Why then would the NVOCC be an unlicensed entity in Virginia on inbound cargo from Vietnam? At the most, the Respondent indicated that it could reach out to companies for a good rate but is not even listed on the documents as an NVOCC or a shipper. There are no bills of lading with the name of Daynamez as a NVOCC that have been produced in this litigation. This is a contractual dispute between sales agents. Super Cargo Service Co., Ltd. ("Super Cargo Vietnam") and Kargosmart Global Vietnam Co., Ltd. ("Kargosmart Vietnam").were the ones issuing bills of lading.

10. The allegation that the Respondent held itself out as an NVOCC is a very flawed argument. What is taken from the website disproves the point being argued by the Complainant as it states that the Respondent holds itself out as a NVOCC for shipments **originating from the United States/Canada**. The shipments in question were inbound, coming to the United States. Another problem with this argument by SIC is that it is an OTI licensed by the Federal Maritime Commission. As a licensed member of the shipping community that deals with the Federal Maritime Commission, it certainly knew or at the least should have known that the Respondent was not an NVOCC. SIC is itself an NVOCC and deals with NVOCCs with the shipments in question. It is doubtful that it relied on

words from the website which do not apply to inbound cargo to conclude that Daynamez was an NVOCC. Since SIC is licensed by the Federal Maritime Commission, why would Daynamez be the NVOCC on the shipment as it is not a licensed NVOCC. This matter is a contractual dispute, not an FMC violation. The allegations about the Respondent knowing sources in Rotterdam is also spurious and was previously found by the Court to be without merit.

11. There is nothing in the law that states that a Net.net situation turns a sales agent into an NVOCC. It is a percentage of a profit. In fact, it is the contention of the Respondent that it never received any profit payments. Again, the Court previously found this to be unconvincing to prove that the Respondent acted as an NVOCC.
12. The agreement which is attached as **Exhibit A** to the Complaint is a Sales Agreement, not an NVOCC agreement. There is nothing in the agreement that states that the Respondent was to act as an NVOCC for the shipments from Vietnam. It should be noted that the contract was done as a standard contract by SIC and was prepared by SIC, not Daynamez. So not only is Daynamez not listed as a NVOCC in the agreement, but it is not listed as an NVOCC on any bills of lading. If SIC thought that Daynamez was an NVOCC, why would that not be in the contract?
13. The attached emails in paragraph at 17 do not turn the Respondent into an NVOCC. There are booking rates being discussed but this is something that can be one by a sales agent. Daynamez knowing well known steamship companies such as Maersk and Hapag does not turn the Respondent into a

carrier. This was unpersuasive in the past.

14. The allegations in Paragraph 20 related to giving booking information do not state who did the booking and that in and of itself does not turn the Respondent into an NVOCC
15. The Second Amended Complaint in effect asserts that there were carriers downstream as it mentions other NVOCCs and a freight forwarder. This is an indicator that the Respondent did not approach the ocean carriers directly.
16. The FMC and federal courts have made it clear that jurisdiction under the Shipping Act is functional, not merely nominal or descriptive. In *Landstar Express America Inc. v. FMC*, 569 F.3d 493 (D.C. Cir. 2009), the court ruled that even entities performing related shipping functions, such as agents of NVOCCs, are not subject to the Act. That is what is happening here.
17. The Respondent would also once again direct the Court to the case of *A Customs Brokerage, Inc. v. Cargocare Logistics Usa, Inc. and Cargocare Logistics America, Inc.*, which was a case involving a Customs Broker in a proceeding in front of the Federal Maritime Commission under the Shipping Act of 1984. The Federal Maritime Commission ruled that customs duties were not included within the jurisdiction of the Federal Maritime Commission. Likewise, the Respondent did not do anything that would subject itself to the jurisdiction of the Federal Maritime Commission.
18. NVOCCs and Ocean Freight Forwarders that are licensed by the Federal Maritime Commission typically route cargo from the United States to other

countries. In fact, the cargo in this case was all inbound cargo coming to the United States.

19. The statutory definition of an Ocean Freight Forwarder requires both booking space and processing documentation under 46 U.S.C. § 40102. There is nothing to show that the Respondent had anything to do with documentation and the Complaint states that other parties booked the cargo. The Act states **(17) Non-vessel-operating common carrier.**--The term "non-vessel-operating common carrier" means a common carrier that--**(A)** does not operate the vessels by which the ocean transportation is provided; and **(B)** is a shipper in its relationship with an ocean common carrier. The Respondent is an American Limited Liability Company and there is nothing to show that it appears on any bills of lading as a shipper. It does not meet the definition nor is it a licensed NVOCC or an Ocean Freight Forwarder. There are no allegations that the Respondent is a consolidator or an Ocean Freight Forwarder.

20. See also *AEI Asia Express (H.K.) Ltd. v. Am. Bankers Ins. Co. of Fla.*, 5 F.

App'x 106, 109 (4th Cir. 2001) which states:

"NVOCC is defined as "a common carrier that does not operate the vessels by which the ocean transportation is provided and is a *shipper in its relationship with an ocean common carrier.*" 46 App.U.S.C.A. § 1702(17) (emphasis added). Courts frequently describe NVOCCs as "intermediar [ies] between a shipper of goods and an operator of a vessel that carries

the goods. *Axess Int'l, Ltd. v. Intercargo Ins. Co.*, 183 F.3d 935, 937 (9th Cir.1999). “ The Respondent did not deal directly with the ocean carrier.

21. An ocean freight forwarder is **(19) Ocean freight forwarder.**--The term “ocean freight forwarder” means a person that--**(A)** in the United States, dispatches shipments from the United States via a common carrier and books or otherwise arranges space for those shipments on behalf of shippers; and **(B)** processes the documentation or performs related activities incident to those shipments. 46 U.S.C.A. § 40102 (West).The shipments were from Vietnam to the United States. The Respondent was not acting as an ocean freight forwarder. The allegations of the Amended Complaint do not state that the Respondent processed documentation and does not allege that Daynamez is an Ocean Freight Forwarder.
22. The allegations about taking money have no substance and should put forth some evidence that the Respondent took any money besides self-serving statements.
23. Although the court stated that a shipping contract does not supplant the Shipping Act, this is a civil dispute between two parties to a contract. The Complainant could pursue this matter in another forum such as a Federal or State Court or in Vietnam. There is a civil dispute over who is owed money and the Respondent will be asserting this, if the Federal Maritime Commission is going to assert jurisdiction over this matter.
24. The Complainant cites to 46 U.S.C. §40901 & §40902: Unlicensed NVOCC operations are prohibited. There were no unlicensed activities by the

Respondent as it never acted as a NVOCC. This cargo was inbound cargo, not outbound cargo.

25. Section 46 U.S.C. 41102 (a) does not apply to this situation as Daynamez was not the one booking the cargo.

**Issues over Freight Charges and alleged money owed to Complainant.**

26. As to the allegations related to freight charges and cargo being wrongfully withheld, these are only allegations and are disputed by the Respondent. A party can assert anything, but that does not make it true.
27. It is the position of the Respondent that it was not paid for these shipments and was not responsible for any restraint of cargo. Attached is a correspondence from the Complainant stating that it owes money to the Respondent on August 23, 2024, **Exhibit A** and another from October 7, 2024, likewise acknowledging that money was owed to Daynamez on October 8<sup>th</sup> 2024. **Exhibit B**. Also attached is a third acknowledgment of money being owed to the Respondent on October 8, 2024. **Exhibit C**. This unwarranted litigation has damaged my client. How could the Respondent owe over \$2,000,000 when it acknowledged owing the Respondent money right before and after the end of their relationship.
28. Again, these allegations are not proper and will continue to be challenged by the Respondent, however if there is jurisdiction then Daynamez reserves the right to pursue its own claims in a counterclaim as money is owed to it as a result of the Claimant not paying its bills.

Wherefor Daynamez would ask that the Complaint be dismissed with prejudice as the Complaint

is in the wrong jurisdiction and that it should be awarded its attorney fees and court costs and any other relief allowable by law.

Dated: February 20<sup>th</sup>, 2026

### CERTIFICATE OF SERVICE

I certify that on the 29<sup>th</sup> day of February 2026 a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:

Mr. Nguyen Tien Phuong  
Southern International Co., LLC  
Floor 4<sup>th</sup> Building 772EFG Su Van Hanh, Hoa Hung  
Ward, Ho Chi Minh City Vietnam  
Email:  
southern@southern.com.vn

nam@southern.com.vn

legal@southern.com.vn

Secretary of FMC <secretary@FMC.gov>

Judges judges@fmc.gov

Dated:  
February 26, 2026

Respectfully submitted, Daniel W. Raab,

P.A.

s/Daniel W. Raab

Daniel W. Raab, Esq.

9555 North Kendall Drive Suite 210

Miami, Florida 33176

Bar Number 264199

Telephone: 305-598-5517

Facsimile: 305-598-5593

SEE BELOW SIC FINAL CALCULATION BETWEEN US

From: Nam Nguyen <nam@southern.com.vn>  
Sent: Friday, August 23, 2024 10:49 AM  
To: Huong Nguyen <huong1@southern.com.vn>  
Cc: kamali@daynamez.com; Nghiem <nghiem@southern.com.vn>  
Subject: Re: BANK SLIP - REMITTANCE INVOICE DAYNAMEZ8001-1 DEDUCT FCT

Dear Kamali,

Good day to you, hope you are good

Here is the calculation for this payment

1. Ocean Freight for shipments (17-22/8): \$136400
2. Daynamez's profit for the payment 7 of July shipments: \$29440
3. The Foreigner Contractor Tax (For INV DAYNAMEZ7008-2 & DAYNAMEZ8001-1): \$1658.4

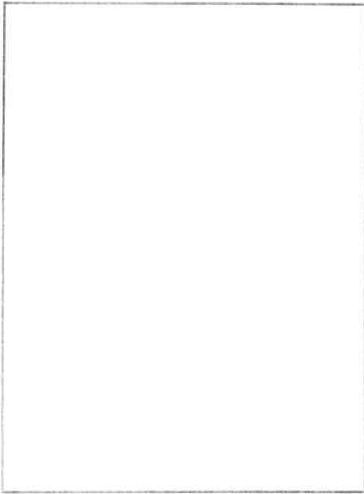
Total: (1) + (2) - (3) = \$136400 + \$29440 - \$1658.4 = \$164181.6

I also attached the spreadsheet for Ocean Freight and Daynamez's Profit for this time payment, I noted in blue

Hope to hear from you soon

**Thanks & Best Regards**

Exhibit A



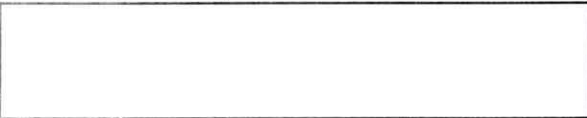
**Nam Nguyen**  
*Overseas Executives*  
**SOUTHERN INTERNATIONAL CO., LTD**

 +84-28-38630088 Ext: 14 |  +84775192912

 [nam@southern.com.vn](mailto:nam@southern.com.vn) |  [southern.com.vn](http://southern.com.vn)

 64 Truong Dinh Str, Vo Thi Sau Ward, Dist. 3, HCMC, Vietnam

 **Registered ID: 0303078809**



From: Nam Nguyen <[nam@southern.com.vn](mailto:nam@southern.com.vn)>  
Sent: Friday, August 23, 2024 11:28 AM  
To: [kamali@daynamez.com](mailto:kamali@daynamez.com)  
Cc: Huong Nguyen <[huong1@southern.com.vn](mailto:huong1@southern.com.vn)>; Nghiem <[nghiem@southern.com.vn](mailto:nghiem@southern.com.vn)>  
Subject: Re: BANK SLIP - REMITTANCE INVOICE DAYNAMEZ8001-1 DEDUCT FCT

Dear Kamali,

Good day to you,  
Let me resend you the spreadsheet, please check again for the ETD in this new spreadsheet  
my dear

Hope to hear from you soon

**Thanks & Best Regards**



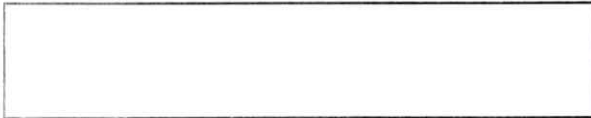
**Nam Nguyen**  
*Overseas Executives*  
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 64 Truong Dinh Str, Vo Thi Sau Ward, Dist. 3, HCMC, Vietnam

 **Registered ID: 0303078809**



Vào Th 6, 23 thg 8, 2024 vào lúc 23:12 <[kamali@daynamez.com](mailto:kamali@daynamez.com)> đã viết:

Dear Nam,

Well noted and it is very clear.

Thanks.

Zia Kamali

*Daynamez Group*

[4000 Legato Road, Suite 1100](#)

[Fairfax, VA 22033, USA](#)

[Office: +1 \(571\) 318-5515](#)

*Mobile: 1 (571) 287-9964*



[www.daynamez.com](http://www.daynamez.com)

## Nam Nguyen

---

**From:** kamali@daynamez.com  
**Sent:** Tuesday, October 8, 2024 11:11 AM  
**To:** 'Nam Nguyen'  
**Subject:** RE: 150000/UD to supercargo

Dear Nam  
It is confirmed and very clear.  
Go ahead.  
Stay safe.

Zia Kamali

*Daynamez Group*

[4000 Legato Road, Suite 1100](#)

[Fairfax, VA 22033, USA](#)

[Office: +1 \(571\) 318-5515](#)

*Mobile: 1 (571) 287-9964*

**DAYNAMEZ**

[www.daynamez.com](http://www.daynamez.com)

**From:** Nam Nguyen <nam@southern.com.vn>  
**Sent:** Monday, October 7, 2024 11:03 PM  
**To:** kamali@daynamez.com  
**Subject:** Re: 150000/UD to supercargo

Dear Kamali,

Good day to you, hope you are good

Before my accountant can work on this thing, please help me to confirm the following information.

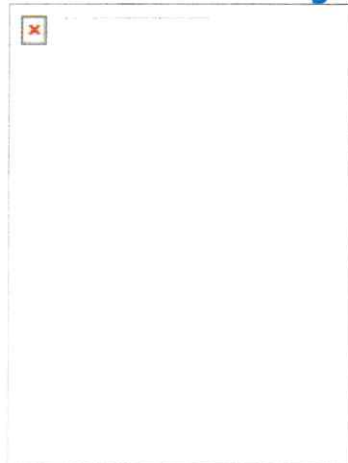
1. Will this amount of money be cut to the amount of money \$88400 left that I calculated for you in the previous email? And the balance \$61600 will be cut to Daynamez's profit.

Exhibit B

2. Because Southern just pay the amount of money \$150000 to Super Cargo (Sophia) as the Ocean Freight, so can my accountant call their accountant to confirm their Invoice should be the Ocean Freight Invoice?

Hope to hear from you soon

### Thanks & Best Regards



**Nam Nguyen**

*Overseas Executives*

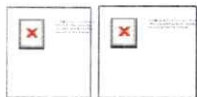
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64 Truong Dinh Str, Vo Thi Sau Ward, Dist. 3, HCMC, Vietnam

Registered ID: 0303078809



Vào Th 3, 8 thg 10, 2024 vào lúc 10:40 <[kamali@daynamez.com](mailto:kamali@daynamez.com)> đã viết:

Dear Nam,

Good day.

As per our phone conversation am requesting you to pay 150000/USD to supercargo today to close their account with us and please adjust this amount for our next payment.

Thanks.

Note: pls do not forget to send me receipt of this payment/ thanks

Zia Kamali

Daynamez Group

[4000 Legato Road, Suite 1100](#)

From: Nam Nguyen <nam@southern.com.vn>  
Sent: Friday, October 11, 2024 11:28 AM  
To: kamali@daynamez.com  
Subject: SIC - Total shipments of Sophia/ supercargo and Kargosmart

Dear Kamali,

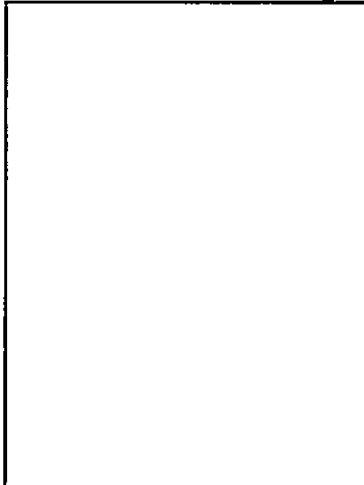
Good day to you,

Let me inform you the total shipments that via Sophia/ Super cargo and Kargosmart,

Total amount of money still not paid to Daynamez for shipments via Sophia:  (This amount of money is cut from the \$149990 that Southern paid to Sophia/ supercargo yesterday)

Hope to hear from you soon

**Thanks & Best Regards**



**Nam Nguyen**  
*Overseas Executives*  
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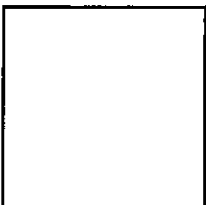
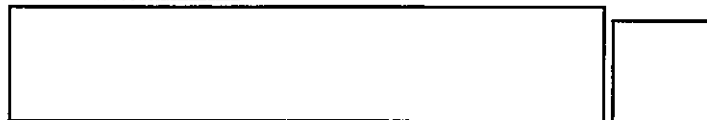
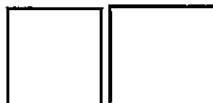


Exhibit C